

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 70254/10
DĚLNICKÁ STRANA and Tomáš VANDAS
against the Czech Republic

The European Court of Human Rights (Fifth Section), sitting on 26 March 2013 as a Committee composed of:

Angelika Nußberger, *President,*
André Potocki,
Aleš Pejchal, *judges*
and Stephen Phillips, *Deputy Section Registrar,*

Having regard to the above application lodged on 25 November 2010,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The first applicant, Dělnická strana, was a political party registered in 2002 and dissolved in 2010, and the second applicant, Mr Tomáš Vandas, is a Czech national, who was the chairman of the first applicant. He was born in 1969 and lives in Prague. They were represented before the Court by Mr P. Prchal, a lawyer practising in Prague.

The Czech Government ("the Government") were represented by their Agent, Mr V.A. Schorm, of the Ministry of Justice.

The applicants complained under Article 6 of the Convention that the domestic decisions on the dissolution of the first applicant had not been fair. Further, relying on Articles 9, 10 and 11 of the Convention, the applicants complained that the dissolution of the first applicant had violated their freedom of expression and association and that they had been penalised for expressing political opinions.

The applicants' complaints under Article 11 were communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicants, who were invited to submit their own observations. These were never submitted.

By a letter dated 21 November 2012, sent by registered post, the applicants' representative was notified that the period allowed for submission of their observations had expired on 21 August 2012 and that no extension of time had been requested. The applicants' representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicants' representative's office received this letter on 5 December 2012. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Stephen Phillips
Deputy Registrar

Angelika Nußberger
President